MASTER SERVICES AGREEMENT

Section 1. Parties and Effective Date

This Master Services Agreement ("Agreement") is entered into effective as of January 1, 2024 ("Effective Date"), by and between Dunder Inc., a Delaware corporation ("Client"), and Cyberdyne Corp., a California corporation ("Service Provider").

Section 2. Services

Service Provider shall provide information technology consulting services, including systems analysis, technology assessment, and implementation support as further detailed in mutually agreed upon Statements of Work ("SOWs"). Each SOW shall specify the particular services, deliverables, timeline, and any additional fees or expenses applicable to that engagement.

Section 3. Term and Termination

This Agreement shall commence on the Effective Date and continue for a period of five (5) years, unless earlier terminated. Either party may terminate this Agreement for any reason or no reason by providing written notice to the other party at least sixty (60) days prior to the intended termination date. Termination shall be effective upon expiration of the notice period. Upon termination, Client shall pay Service Provider for all services rendered through the termination date and all reasonable expenses incurred.

Section 4. Fees and Payment Terms

Client shall pay Service Provider an annual fee of One Hundred Three Thousand Dollars ($103,000) payable in quarterly installments of Twenty-Five Thousand Seven Hundred Fifty Dollars ($25,750) due within thirty (30) days of invoice. Invoices shall be submitted monthly for services rendered. Additional services beyond the scope of SOWs shall be billed at Service Provider's then-current hourly rates, currently ranging from $150 to $250 per hour depending on resource level, and shall require written authorization from Client prior to commencement.

Section 5. Expenses

Client shall reimburse Service Provider for all reasonable, documented out-of-pocket expenses incurred in performing services, including travel, accommodation, and materials, provided that air travel shall be coach class and expenses shall be pre-approved in writing by Client's designated representative.

Section 6. Confidentiality

Each party ("Disclosing Party") may disclose confidential information to the other party ("Receiving Party"). Confidential information includes all non-public business, technical, and financial information. The Receiving Party shall maintain confidentiality using the same degree of care it uses for its own confidential information, but no less than reasonable care. Confidentiality obligations do not apply to information that is publicly available, independently developed, or lawfully received from third parties. Obligations survive termination for five (5) years.

Section 7. Intellectual Property

Service Provider retains all intellectual property rights in methodologies, tools, templates, and pre-existing materials. Client receives a non-exclusive license to use deliverables created specifically for Client under applicable SOWs. Custom work product shall be owned by Client upon full payment of all fees.

Section 8. Limitation of Liability

Neither party shall be liable for indirect, incidental, consequential, special, or punitive damages, including lost profits or data. Each party's total liability under this Agreement shall not exceed the fees paid or payable in the twelve months preceding the claim.

Section 9. Warranties and Disclaimers

Service Provider warrants that services shall be performed in a professional and workmanlike manner consistent with industry standards. EXCEPT AS EXPRESSLY STATED, SERVICE PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

Section 10. Indemnification

Service Provider shall indemnify, defend, and hold harmless Client from third-party claims arising from Service Provider's breach of law or infringement of intellectual property rights. Client shall indemnify Service Provider from claims arising from Client's use of deliverables in unauthorized ways.

Section 11. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to conflicts of law principles.

Section 12. General Provisions

This Agreement constitutes the entire agreement between the parties. Amendments must be written and signed by both parties. Waiver of any provision is not waiver of any other provision. If any provision is invalid, remaining provisions shall continue in effect.